

Federal Constitution

NOTES

Art. 14

1. The present Article was inserted by Act 26/1963, section 23, in force from 16-09-1963, but Clauses (1)(c), (2) and (3), which are reproduced below, were repealed by Act 59/1966, section 2, in force from 09-08-1965:

“(1)(c) every citizen of Singapore.

(2) Subject to the provisions of this Part, provision with respect to citizenship of Singapore may be made by the Constitution of that State, and may be amended by laws passed by the Legislature of that State and approved by Act of Parliament.

(3) Citizenship of Singapore shall not be severable from citizenship of the Federation, but a Singapore citizen by the loss of either shall lose the other also (subject to the provision made by this Part for the enrolment of a Singapore citizen as a citizen who is not a Singapore citizen).”.

2. The earlier Article, as it stood at the date of repeal, read as follows:

“14. (1) Subject to the following provisions of this Article, the following persons are citizens by operation of law, that is to say:

- (a) every person who, immediately before Merdeka Day, was citizen of the Federation by virtue of any of the provisions of the Federation of Malaya Agreement 1948, whether by operation of law or otherwise;
- (b) every person born within the Federation on or after Merdeka Day;
- (c) every person born outside the Federation on or after Merdeka Day whose father is a citizen at the time of the birth and either was born within the Federation or is at the time of the birth in service under the Government of the Federation or of a State;
- (d) every person born outside the Federation on or after Merdeka Day whose father is a citizen at the time of the birth, if the birth is registered at a Malayan Consulate or, in the case of any such person born within any prescribed territory, with the Federal Government, within one year of its occurrence, or within such longer period as the Federal Government may in any particular case allow.

For the purposes of paragraph (d) of this Clause “prescribed territory” means Singapore, Sarawak, Brunei or North Borneo, or any such other territory as the Yang di-Pertuan Agong may by order prescribe for those purposes.

(2) A person is not a citizen by virtue of paragraph (b) of Clause (1) if, at the time of his birth—

- (a) his father, not being a citizen of the Federation, possessed such immunity from suit and legal process as is accorded to an envoy of a sovereign power accredited to the Yang di-Pertuan Agong; or
- (b) in the case of a birth occurring in a place under occupation by the enemy, his father was an enemy alien; or
- (c) neither of his parents was a citizen of the Federation and neither of them was a permanent resident therein:

Provided that paragraph (c) of this Clause does not apply—

- (i) to any person born within the Federation before the date on which section 2 of the Constitution (Amendment) Act 1962 come into force;
- (ii) to any person if, as a result of the application of that paragraph, he would not be a citizen of any country.

(3) For the purposes of this Article a person born on board a registered ship or aircraft shall be deemed to have been born in the place in which the ship or aircraft was registered, and a person born on board an unregistered ship or aircraft of the Government of any country shall be deemed to have been born in that country.